

24STCV19425 24STCV19425

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Case Number: 24STCV19425 Hearing Date: September 17, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 17, 2026

CASE NUMBER: 24STCV19425

CASE NAME: Ming Lu v. Xin Min International, Inc.

MOVING PARTY: Plaintiff Ming Lu

OPPOSING PARTY: Defendant Xin Min International,
Inc.

PROCEEDING: MOTION TO QUASH OR LIMIT DEFENDANT'S DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS

RULING

SUMMARY: Plaintiff's Motion to
Quash Defendant's Deposition Subpoena for Production of Business Records served
on May 14, 2026, is GRANTED.

Background

Plaintiff

Ming Lu filed this employment action against defendant Xin Min International, Inc. on August 2, 2024. Plaintiff alleges he was employed by Xinmin Evening News, a news outlet owned by Defendant, from 2015 to 2023. In 2018, Defendant asked that Plaintiff move to the United States to report on news occurring

here. Plaintiff contends he worked considerably more than 40 hours a week for Defendant for years for a monthly salary of \$1,500.00, in violation of California wage-and-hour laws. Defendant denies it was Plaintiff's legal employer under California law.

On May

14, 2026, Defendant served a subpoena for production of business records on third party financial institution the Industrial and Commercial Bank of China (ICBC or the Bank). (Turk Decl., Exh. A.) Defendant demanded production of the following documents on June 5, 2026 pertaining to Plaintiff's account with the Bank, specified by number:

1.

Any and all DOCUMENTS referencing the ACCOUNT within the SPECIFIED TIME.

2.

Any and all COMMUNICATIONS with Ming Lu referencing or pertaining to the ACCOUNT within the SPECIFIED TIME.

3.

Any and all DOCUMENTS referencing or pertaining to the ACCOUNT opening.

4.

Any and all signature cards pertaining to the ACCOUNT during the SPECIFIED TIME.

5.

Any and all monthly statement DOCUMENTS pertaining to the ACCOUNT during the SPECIFIED TIME.

6.

Any and all front and back copies of all

canceled checks pertaining to the ACCOUNT during the SPECIFIED TIME.

7.

Any and all deposit slips, withdrawal slips,
and transaction records pertaining to the ACCOUNT during the SPECIFIED TIME.

8.

Any
and all checks of any kind (e.g. cashier's) pertaining to the ACCOUNT during
the SPECIFIED TIME.

9.

Any
and all wire transfers pertaining or referencing to the ACCOUNT during the
SPECIFIED TIME.

10.

Any and all online or internet transfer
pertaining or referencing the ACCOUNT during the specified time.

11.

Any and all power of attorney pertaining to
the ACCOUNT.

On June 1, 2026, Plaintiff filed the motion
to quash or limit the subpoena on privacy grounds. Defendant opposes.

MOTION TO QUASH
OR LIMIT SUBPOENA

I. Legal Standard

A party
is entitled to obtain business records within this state from "a person who is
not a party to the action in which the discovery is sought" through use of a

deposition subpoena. (Code Civ. Proc., § 2025.010.) The obtaining of business records through a deposition subpoena “is a ‘deposition’ within the plain meaning of the Civil Discovery Act.” (Naser v. Lakeridge Athletic Club (2014) 227 Cal.App.4th 571, 578.)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420(b).)

III. Discussion

Williams

v. Superior Court (2017) 3 Cal.5th 531, 541 (Williams) and Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35 (Hill) describe the test a court should apply when limiting discovery based on privacy interests. The three-pronged Hill test, applied to discovery disputes via Williams, proceeds as follows:

“The party asserting a privacy right must establish [1] a legally protected privacy interest, [2] an objectively reasonable expectation of privacy in the given circumstances, and [3] a threatened intrusion that is serious. ([Hill,] at pp. 35–37) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (Id. at pp. 37–40)”

(Williams, supra, 3 Cal.5th at p. 552.)

Defendant

has the burden to satisfy the three prongs of Hill, and then the Court proceeds to apply a balancing test and determine whether material protected by Hill should be disclosed.

Plaintiff

has established a legally protected privacy interest, objectively reasonable

expectation, and – given the breadth of Defendant's document requests – a serious intrusion. "The right of privacy is an 'inalienable right' secured by article I, section 1 of the California Constitution. ... It protects against the unwarranted, compelled disclosure of various private or sensitive information regarding one's personal life ... , including his or her financial affairs" (Hooser v. Superior Court (2000) 84 Cal.App.4th 997, 1003-1004, internal citations omitted, disapproved on other grounds in Williams, supra; see also Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 656-657 [no privilege, but constitutional privacy interest in bank records].)

Because

Plaintiff satisfies the first prong of the Williams test, it falls to Defendant to identify feasible alternatives. It has not done so. In meet-and-confer correspondence and in its opposition, it insists that the subpoena must be enforced in its entirety. It offers to stipulate to a protective order, but the wholesale disclosure of Plaintiff's financial records to Defendant is by itself intrusive. Defendant may be entitled to limited records at least reflecting Plaintiff's income and its sources at relevant times, but it is Defendant's burden to identify alternatives, and it has not done so.

Conclusion

Plaintiff's

motion to quash the subpoena served on May 14, 2026, is GRANTED.

Date: September

17, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court